

HarborTech Supply LLC v. Piedmont Components, Inc. - Partial Judgment Without Rule 54(b) Certification

Partial Judgment Without Rule 54(b) Certification in HarborTech Supply LLC v. Piedmont Components, Inc.. Procedural posture: District court entered partial summary judgment on the main contract claim while counterclaims and fee issues remained pending, with no separate Rule 54(b) certification. Record material: The notice of appeal identifies only the partial summary judgment order. Issue: Finality without Rule 54(b) certification. Standard of review: de novo jurisdictional review. Record excerpt: Supply agreement termination clause. The agreement allows termination for uncured material breach after thirty days' written notice. Nature of suit: Diversity - Commercial Contract. Lower tribunal: U.S. District Court for the District of South Carolina.